

9:00 9	24CV453635	Brandon Hilburn vs. Ford Motor Company	Defendant's moving papers for summary judgment are not in the court files. This court will continue the matter for one week. Court requests that both parties appear either remotely or in court for further clarification.
9:00 10	25CV462016	Joseph William Narhuminti vs. Curtis Gordon Fong	Defendant moves this court for an order directing the VA records custodian to comply with Defendant's subpoenas. This court ordered records to be produced to the Defendant on December 19, 2025. There has been no opposition filed to this motion. Defendant's motion is GRANTED. Records are ordered to be produced within 10 days of service of this order.
9:00 11	25CV469362	Scott Johnson v. Sunnyvale Car Spa	Plaintiff moves this court to order attorney fees in the amount of \$12,620. Plaintiff prevailed in an ADA lawsuit. The court finds the amount to be excessive. Plaintiff is granted \$3,465 in attorney fees and \$1,000 for filing fees along with \$726.80 in other costs. Plaintiff is awarded \$5,191 in fees and court costs.
9:00 12	25CV476297	Aruna Kamara vs. Hulaimatu Kamara	Case continued.
9:00 13	25CV486109	Sonia Bhaskar et.al. vs BMW of North America	See below.

Calendar Line 13

Case Name: *Bhaskar, et al. v. BMW of North America , LLC, et al.*

Case No.: 26CV486109

On February 4, 2026, plaintiffs Sonia Bhaskar and Peter Petersen (collectively, “Plaintiffs”) filed a complaint against defendant BMW of North America, LLC (“Defendant” or “BMW”), asserting causes of action for violation of the Song-Beverly Act—Breach of Express Warranty, violation of the Song-Beverly Act—Breach of Implied Warranty, and violation of the Song-Beverly Act, section 1793.2(b). On March 12, 2026, BMW filed an answer including a general denial and 29 affirmative defenses. Plaintiffs demur to the second through twenty-ninth affirmative defenses.

Second through fourth, tenth, eleventh and fifteenth affirmative defenses

Plaintiffs argue that the second through fourth, tenth, eleventh and fifteenth affirmative defenses “are simply legal conclusions and allege no facts sufficient to constitute a defense.” (Pls.’ memorandum of points and authorities in support of demurrer to answer (“Pls.’ memo”), p.9:10-12.) Ironically, Plaintiffs’ argument points to no specific allegations to support their argument and their assertion that these affirmative defenses are simply legal conclusions is itself a legal conclusion.

Plaintiffs also argue that these affirmative defenses “lacks the specificity required of the Code” (Pls.’ memo, p.9:23); however, the case cited—*FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367—concerns a motion for summary judgment, not a demurrer and does not set forth any requirement of specificity for a particular affirmative defense. Moreover, Plaintiffs do not articulate how any of the affirmative defenses specifically fail to allege the elements of the affirmative defense with the purportedly requisite specificity, much less cite to the portion of the affirmative defense. (See *Utility Consumers' Action Network v. Public Utilities Com.* (2010) 187 Cal.App.4th 688, 697 (stating that “[t]he parties are required to support their points with argument, any case authority, and record citations”); see also *In re Marriage of Falcone & Fyke* (2008) 164 Cal.App.4th 814, 830 (stating that “[w]e are not bound to develop appellants’ arguments for them... [t]he absence of cogent legal argument or citation to authority allows this court to treat the contentions as waived”); see also *Trinity Risk Management, LLC v. Simplified Labor Staffing Solutions, Inc.* (2021) 59 Cal.App.5th 995, 1008 (stating that “[w]hen an appellant fails to raise a point, or asserts it but fails to support it with reasoned argument and citations to authority, we treat the point as waived”).)

Plaintiffs’ demurrer to the second through fourth, tenth, eleventh and fifteenth affirmative defenses is OVERRULED.

Fifth, sixth, eighth, twelfth through fourteenth, sixteenth through twenty-eighth affirmative defenses

As to the fifth, sixth, eighth, twelfth through fourteenth, sixteenth through twenty-eighth affirmative defenses, Plaintiffs repeats the argument regarding their demurrer to the second through fourth, tenth, eleventh and fifteenth affirmative defenses, likewise arguing that they are “simply legal conclusions and allege no facts sufficient to constitute a defense” and “lacks the specificity required of the Code” without explaining why the allegations of the sixth affirmative defense are inadequate. (See Pls.’ memo, pp. 9:18-28, 10:1-28, 11:1-28, 12:1-28, 13:1-28, 14:1-28, 15:1-3.) For identical reasons, Plaintiffs’ demurrer to the fifth, sixth, eighth, twelfth through fourteenth, sixteenth through twenty-eighth affirmative defenses is likewise OVERRULED. (See *Utility Consumers' Action Network*, *supra*, 187 Cal.App.4th at p. 697 (stating that “[t]he parties are required to support their points with argument, any case authority, and record citations”); see also *In re Marriage of Falcone & Fyke*, *supra*, 164 Cal.App.4th at p. 830 (stating that “[w]e are not bound to develop appellants’ arguments for them... [t]he absence of cogent legal argument or citation to authority allows this court to treat the contentions as waived”); see also *City of Ontario v. We Buy Houses Any Condition, LLC* (2024) 103 Cal.App.5th 1212, 1223 (stating same); see also *Trinity Risk Management*, *supra*, 59 Cal.App.5th at p. 1008 (stating that “[w]hen an appellant fails to raise a point, or asserts it but fails to support it with reasoned argument and citations to authority, we treat the point as waived”); see also *Utility Consumers' Action Network*, *supra*, 187 Cal.App.4th at p. 697 (stating that “[t]he parties are required to support their points with argument, any case authority, and record citations”).)

Seventh affirmative defense

As to the seventh affirmative defense, Plaintiffs argue, without citation to any authority that “[t]his affirmative defense is not legally cognizable, and therefore improper.” (Pls.’ memo, p.15:16.) However, as previously stated, Plaintiffs’ failure to cite to any case authority to support this argument is an unacceptable deficiency as the Court may not develop Plaintiffs’ argument for them. (See *In re Marriage of Falcone & Fyke*, *supra*, 164 Cal.App.4th at p. 830 (stating that “[w]e are not bound to develop appellants’ arguments for them... [t]he absence of cogent legal argument or citation to authority allows this court to treat the contentions as waived”); see also *City of Ontario*, *supra*, 103 Cal.App.5th at p. 1223 (stating same); see also *Trinity Risk Management*, *supra*, 59 Cal.App.5th at p. 1008 (stating that “[w]hen an appellant fails to raise a point, or asserts it but fails to support it with reasoned argument and citations to authority, we treat the point as waived”).

Plaintiffs also again argue that “this defense is insufficient in that it is simply a legal conclusion and alleges no facts sufficient to constitute a defense” (Pls.’ memo, p.15:17-18); however, as stated above, Plaintiffs do not articulate how the seventh affirmative defense specifically fails to allege the elements of the affirmative defense, and the assertion that the affirmative defense is simply a legal conclusion is itself a legal conclusion. Plaintiffs’ demurrer to the seventh affirmative defense is OVERRULED.

Ninth affirmative defense

Citing *Davenport v. Stratton* (1944) 24 Cal.2d 232, and *Brown v. World Church* (1969) 272 Cal.App.2d 684, Plaintiffs argue that the ninth affirmative defense of statute of limitations fails to state facts sufficient to constitute an affirmative defense because it does not specify the applicable statute and subdivision. (See *Davenport*, *supra*, 24 Cal.2d at pp.246-251; see also *Brown*, *supra*, 272 Cal.App.2d at p. 691 (stating that “[i]t is necessary for defendant who pleads the statute of limitations to specify the applicable section, and, if such section is divided into subdivisions, to specify the particular subdivision or subdivisions thereof. If he fails to do so the plea is insufficient”).) The ninth affirmative defense alleges that “Plaintiff’s causes of action as

alleged in his Complaint are barred by the applicable statutes of limitations, including but not limited to: Civil Code sections 335.1, 337, 338, 338.1, and 340 et. seq.; Civil Code sections 1783 and 1791.1; and/or Commercial Code section 2725.” (Def.’s answer to complaint, ninth affirmative defense.) Code of Civil Procedure sections 335.1 and 338.1 and Civil Code section 1783 do not have subdivisions. Thus, the ninth affirmative defense adequately states facts sufficient to constitute an affirmative defense as to those statutes of limitations, and a plaintiff may not demur to a portion of an affirmative defense. (See *PH II, Inc. v. Super. Ct. (Ibershof)* (1995) 33 Cal.App.4th 1680, 1681 (stating that “a party may not demur to a portion of a cause of action”); see also *Ellena v. Department of Ins.* (2014) 230 Cal.App.4th 198, 217 (stating same); see also *Munoz v. Patel* (2022) 81 Cal.App.5th 761, 780, fn. 9 (stating that “[o]rdinarily, a general demurrer does not lie as to a portion of a cause of action, and if any part of a cause of action is properly pleaded, the demurrer will be overruled”).) Plaintiffs’ demurrer to the ninth affirmative defense is OVERRULED.

Twenty-ninth affirmative defense

Plaintiffs demur to the twenty-ninth affirmative defense of “reservation of defenses,” arguing that “[a] party cannot reserve the right to assert future defenses without actually pleading them.” (Pls.’ memo, p.15:22.) That is because “[a] party who fails to plead affirmative defenses waives them.” (*Quantification Settlement Agreement Cases* (2011) 201 Cal.App.4th 758, 813; see also *Department of Finance v. City of Merced* (2019) 33 Cal.App.5th 286, 294 (stating same).) In opposition, Defendant asserts that “BMW NA’s reservation of the right to assert additional defenses based on information obtained through discovery is proper at this early stage of litigation, where discovery has not yet occurred... Plaintiffs have identified no prejudice arising from this reservation, and it does not render the Answer defective.” (Def.’s opposition to demurrer (“Opposition”), p.4:15-17.) However, as stated above, Defendant is incorrect; it may not plead a right to assert future defenses because its failure to plead those defenses waives them.

Plaintiffs' demurrer to the twenty-ninth affirmative defense is SUSTAINED without leave to amend.

Defendant shall prepare and submit a proposed final order consistent with this tentative ruling.